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Tentative Ruling

Re: ***Crystal Dominguez v. Steven Johnson***
Superior Court Case No. 24CECG04530

Hearing Date: June 9, 2026

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To deny the petition, without prejudice, for the reasons explained below. Hearing on this matter is set for Tuesday, June 9, 2026 in Department 503. In the event that oral argument is requested the minor is excused from appearing.

Explanation:

According to the petition, the minor has fully recovered from injuries received in a car collision and is to receive a gross settlement of \$15,000 with the balance of the settlement after medical costs, attorney fees and litigation costs to be deposited in a blocked account. There are several issues with the petition that prevent approval.

Attachment 13a summarizing medical expenses to be paid from the settlement indicates nearly all medical treatment providers have agreed to accept a reduced amount to satisfy the bills incurred. (Petr., Att. 13a.) These agreements reduce the medical bills from \$11,979 to \$6,285. No written evidence of the negotiated reductions has been provided to support the payment of \$6,285 from the settlement.

As a matter of law, in addition to approval of the settlement itself, attorney fees to be paid for representing the minor or incompetent must be approved by the court. (Prob. Code § 3601.) Unless the court has approved the attorney's fee agreement in advance, the court **must determine** a reasonable fee based on all the circumstances of the case and may consider the factors set forth in California Rules of Court, Probate Rule 7.955, subdivision (b).

The court must consider the terms of any fee agreement between the attorney and the representative of the minor or disabled person and must evaluate the agreement based on the facts and circumstances at the time the agreement was made. (Cal. Rules of Court, Prob. Rule 7.955(a).) **The court may allow attorney fees under a valid contingency fee agreement so long as the fees are reasonable.** (Cal. Rules of Court, Prob. Rule 7.955(a), Advisory Comm. Comment; see *Gonzalez v. Chen* (2011) 197 Cal.App.4th 881, 885-886 [lawyer not automatically entitled to maximum MICRA fees as provided in contingency agreement because court must apply factors stated in Cal. Rules of Court, Prob. Rule 7.955].) A petition seeking fees must be supported by a declaration by the attorney that addresses the factors set forth above that are relevant to the fee request. (Cal. Rules of Court, Prob. Rule 7.955(c).) Similarly, reasonable expenses and court costs to be paid out of the settlement proceeds must be approved by the court. (Prob. Code § 3601.)

Here, counsel for the minor plaintiff and petitioner seek approval of attorney's fees reflecting 40% of the gross settlement amount. This figure is based on the fee agreement which provides that the attorney's fees are 40% and increasing by 5% in the event of an appeal. (Petrn., Attachment 14a.) The attorney declaration accompanying the petition does not reveal any information that would support a fee of 40% of the settlement. Paragraph 8 includes conclusory statements that the fee is proportional to the value of services performed and counsel has spent considerable time and effort obtaining the settlement. This is not borne out in a review of the court's docket wherein a notice of settlement was filed on December 18, 2024, only two months after the action was filed on October 17, 2024 and only eight months after the April 14, 2024 motor vehicle accident giving rise to the complaint. The settlement of a personal injury action for what appears to be minimum policy limits only 8 months after the accident does not support a narrative that considerable effort or time was required by the attorney.

The attorney's fee request is not sufficiently supported. There is nothing in the declaration to indicate there was any novelty or difficulty presented in the action, or that the action required significant time or labor of counsel, or that taking this case precluded counsel from accepting other cases. The court is not inclined to award more than 25% of the gross settlement in attorney fees, a total of \$3,750.

The court issued an intended ruling on May 7, 2026 identifying the above issues and allowing the filing of an amended petition in anticipation of the hearing set for June 9, 2026. No additional papers have been filed. Accordingly, the petition is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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Issued By: JS **on** 6/5/2026.
(Judge's initials) (Date)